

# International Copyright Order, 1999

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[7.](#)

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[In exercise of the powers conferred by section 40 of the Copyright Act, 1957 \(14 of 1957\), and in supersession of the International Copyright Order, 1991, the Central Government hereby makes the following Order, namely:—](#)

[1.](#)

[\(1\)](#)

[This Order may be called The International Copyright Order, 1999.](#)

[\(2\)](#)

[It shall come into force on the date of its publication in the Official Gazette.](#)

2.

In this Order, unless the context otherwise requires,—

(a)

“Berne Convention Country” means a country which is a member of the Berne Copyright Union, and includes a country mentioned either in Part I or in Part II of the Schedule;

(b)

“Phonogram” means an exclusively aural fixation of a performance or other sounds;

(c)

“Phonograms Convention Country” means a country which has either ratified, or accepted, or acceded to the Convention for the Protection of Producers of Phonograms against Unauthorized Duplication of their Phonograms, done at Geneva on the twenty-ninth day of October, one thousand nine hundred and seventy-one, and includes a country mentioned in Part V of the Schedule;

(d)

“Schedule” means the Schedule appended to this Order;

(e)

“Universal Copyright Convention Country” means a country which has either ratified or accepted, or acceded to the Universal Copyright Convention, and includes a country mentioned either in Part III or in Part IV of the Schedule;

(f)

“World Trade Organisation Country” means a country which is a member of the World Trade Organisation and which has either ratified, or accepted, or acceded to the Agreement on Trade Related Aspects of Intellectual Property Right, 1994, and includes a country mentioned in Part VI of the Schedule.

3.

Subject to the provisions of paragraphs 4, 5 and 6, all the provisions of the Copyright Act, 1957 (14 of 1957) (hereafter referred to as the Act), except those in Chapter VIII, and those other provisions which apply exclusively to Indian works, shall apply:—

(a)

to any work first made or published in a country mentioned in Part I, II, III, IV or VI of the Schedule, in like manner as if it was first published in India;

(b)

to any work first made or published in a country other than a country mentioned in Part I, II, III, IV or VI of the Schedule, the author of which was, at the date of such publication, or, where the author was dead on that date, he was at the time of his death, a national of a country mentioned in Part I, II, III, IV or VI of the Schedule, in like manner, as if the author was a citizen of India at that point of time;

(c)

to an unpublished work, the author whereof was, at the time of the making or publication of the work, a national or domiciled in any country mentioned in Part I, II, III, IV or VI of the Schedule, in like manner, as if the author was a citizen of, or domiciled in India;

(d)

to any work first made or published by a body corporate incorporated under any law of a country mentioned in Part I, II, III, IV or Part VI of the Schedule, in like manner, as if it was incorporated under a law in force in India; and

(e)

to a sound recording first made, the producer of which was, at the date of such production, a national of a country mentioned in Part V or Part VI of the Schedule or a body corporate incorporated under a law in force in such a country, in like manner as if the producer was the citizen of India or a body corporate incorporated under a law in force in India, as the case may be, at that point of time.

4.

Notwithstanding anything contained in paragraph 3, the provisions of Chapter VIII of the Act shall apply to a Broadcasting Organisation and a Performer in a World Trade Organisation Country mentioned in Part VI of the Schedule.

5.

Notwithstanding anything contained in clause (a) of paragraph 3 and paragraph 4 the provisions of sub-section (1) of

section 32 of the Act—

- (i)  
shall not apply to a work first made or published in any Berne Convention Country mentioned in Part I or Part II of the Schedule;
- (ii)  
shall not apply to a work first made or published in any World Trade Organisation Country mentioned in Part VI of the Schedule;
- (iii)  
shall apply to a work first made or published in any Universal Copyright Convention Country mentioned in Part III or Part IV of the Schedule, only in respect of the translation of such work into any language specified in the Eighth Schedule to the Constitution of India.

6.

The provisions of sections 32 [excluding its sub-section (1), 32-A and 32-B shall apply to a work first made or published in a Berne Convention Country mentioned in Part I of the Schedule or in a Universal Copyright Convention Country mentioned in Part III of the Schedule or in a World Trade Organisation Country mentioned in Part VI of the Schedule.

7. The term of copyright in a work shall not exceed that which is enjoyed by it in its country of origin.

Explanation.—In this paragraph, “the country of origin” shall mean—

- (a)  
in the case of a work first made or published in a Berne Convention Country or a Universal Copyright Convention Country or a World Trade Organisation Country, that country;
- (b)  
in the case of a work made or published simultaneously either in a Berne Convention Country or a Universal Copyright Convention Country or in a World Trade Organisation Country and in a country which is neither a Berne Convention Country nor a Universal Copyright Convention Country nor a World Trade Organisation Country, the former country;
- (c)  
in the case of a work which is made or published simultaneously in several Berne Convention Countries, the country whose laws grant the shortest term of copyright to such a work;
- (d)  
in the case of a work which is made or published simultaneously in several Universal Copyright Convention Countries, the country whose laws grant the shortest term of copyright to such a work;
- (e)  
in the case of a work which is made or published simultaneously in several World Trade Organisation Countries, the country whose laws grant the shortest term of copyright to such a work;
- (f)  
in the case of an unpublished work or a work first made or published in a country other than a Berne Convention Country or a Universal Copyright Convention Country or a World Trade Organisation Country, the country of which the author was a citizen, or the country in which he was domiciled at the time of its first publication, whichever grants the longer term of copyright.

Schedule

PART - I

Berne Convention Countries Which Have Ratified/accepted/ Acceded To The 1971 Text Of The Convention

[See Paragraph 2(a)]

- 1.Albania
- 71.Kyrgyzstan
- 2.Algeria
- 72. Latavia
- 3.Antigua and Barbuda
- 73.Lesotho
- 4.Argentina
- 74.Liberia
- 5.Armenia

75. Libiyan Arab Jamahiriya  
6.Australia  
76.Liechtenstein  
7.Austria  
77.Lithuania  
8.Azerbaijan  
78. Luxumberg  
9.Bahamas  
79.Malawi  
10.Bahrain  
80.Malaysia  
11.Bangladesh  
81.Mali  
12.Barbados  
82.Malta  
13.Belarus  
83.Mauritania  
14.Belgium  
84.Mauritius  
15.Belize  
85.Mexico  
16.Benin  
86.Monaco  
17.Bolivia  
87.Mongolia  
18.Bosnia&Herzegovina  
88.Morocco  
19.Botswana  
89.Namibia  
20.Brazil  
90.Netherlands  
21.Bulgaria  
91.Niger  
22.Burkina Faso  
92.Nigeria  
23.Cameroon  
93.Norway  
24.Canada  
94.Oman  
25.Cape Verde  
95.Panama  
26.Central African Republic  
96.Paraguay  
27.Chile  
97.Peru  
28.China  
98.Philippines  
29.Colombia  
99.Poland  
30.Congo  
100.Portugal

31.Costa Rica  
101.Qatar  
32.Coted'Ivoire  
102.RepublicofKorea  
33.Croatia  
103.RepublicofMoldova  
34.Cuba  
104.Panama  
35.Cyprus  
105.Russian Federation  
36.Czech Republic  
106.Rwanda  
37.Democratic Republic of the Congo  
107. Saint Kitts &Nevis  
38.Denmark  
108.Saint Lucia  
39. Domonica  
109.Saint Vincent and the Grenadines  
40.Dominican Republic  
110.Senegal  
41.Ecuador  
111.Singapore  
42.Egypt  
112.Slovakia  
43.El Salvador  
113.Slovenia  
44.Equatorial Guinea  
114.South Africa  
45.Estonia  
115.Spain  
46.Finland  
116.Sri Lanka  
47.France  
117.Surinam  
48.Gabon  
118.Swaziland  
49.Gambia  
119.Sweden  
50.Georgia  
120.Switzerland  
51.Germany  
121. Tajikstan  
52.Ghana  
122.Thailand  
53.Greece  
123. TheFormerYugoslaviaRepublicofMacedonia  
54.Grenada  
124.Togo  
55.Guatemala  
125.Trinidad and Tobago  
56.Guinea

126.Tunisia  
57.Guinea-Bissau  
127.Turkey  
58.Guyana  
128.Ukraine  
59.Haiti  
129.United Kingdom  
60. Holy See  
130. UnitedRepublicofTanzania  
61.Honduras  
131.United States of America  
62.Hungary  
132.Uruguay  
63.Iceland  
133.Venezuela  
64.Indonesia  
135.Zambia  
65.Italy  
136.Zimbabwe  
134.Yugoslavia  
66,Jamaica  
67.Japan  
68.Jordan  
69.Kazakhstan  
70.Kenya

PART-II

Berne Convention Countries Which Are Yet To Ratify/ Accept/ Accede To The 1971 Text Of Convention  
[See Paragraph 2(a)]

1. Chad  
2. Fiji  
3. Ireland  
4. Israel  
5. Lebanon  
6. Madagascar  
7. New Zealand  
8.  
Pakistan

PART-III

Universal Copyright Convention Countries Which Have Ratified/ Accepted/acceded To The 1971 Text Of The Convention  
[See Paragraph 2(e)]

1.Algeria  
30.Kenya  
2.Australia  
31.Mexico  
3.Austria  
32.Monaco  
4.Bahamas  
33.Morocco  
5.Bangladesh  
34.Netherlands

6.Barbados  
35.Niger  
7.Bolivia  
36.Norway  
8.Bosnia&Herzegovina  
37.Panama  
9.Brazil  
38.Peru  
10.Bulgaria  
39.Poland  
11.Cameroon  
40.Portugal  
12.China  
41.RepublicofKorea  
13.Colombia  
42.Russian Federation  
14.Costa Rica  
43.Rwanda  
15. Croata  
44.Saint Vincent and the Grenadines  
16.Cyprus  
45.saudi Arabia  
17.Czech Republic  
46.Senegal  
18.Denmark  
47.Slovakia  
19.Dominican Republic  
48.Slovenia  
20. Ecudor  
49.Spain  
21.El Salvador  
50.Sri Lanka  
22.Finland  
51.Sweden  
23.France  
52.Switzerland  
24.Germany  
53.Trinidad and Tobago  
25.Guinea  
54.Tunisia  
26. Holy See  
55.United Kingdom  
27.Hungary  
56.United States of America  
28.Italy  
57.Uruguay  
29.Japan  
58.Yugoslavia  
PART-IV

Universal Copyright Convention Countries Which Are Yet To Ratify/ Accept/accede To The 1971 Text Of The Convention

[See Paragraph 2(e)]

- 1.Andorra
19. Lao People's Democratic Republic
- 2.Argentina
- 20.Lebanon
- 3.Belarus
- 21.Liberia
- 4.Belgium
- 22.Liechtenstein
- 5.Belize
- 23.Luxembourg
- 6.Cambodia
- 24.Malawi
- 7.Canada
- 25.Malta
- 8.Chile
- 26.Mauritius
- 9.Cuba
- 27.New Zealand
- 10.Fiji
- 28.Nicaragua
- 11.Ghana
- 29.Nigeria
- 12.Greece
- 30.Pakistan
- 13.Guatemala
- 31.Paraguay
- 14.Haiti
32. Phillippines
- 15.Iceland
- 33.Tajikistan
- 16.Ireland
- 34.Ukraine
- 17.Israel
- 35.Venezuela
18. Kazakhstan
- 36.Zambia

PART-V

Phonograms Convention Countries

[See Paragraph 2(c)]

- 1.Argentina
- 30.Israel
- 2.Australia
- 31.Italy
- 3.Austria
- 32.Jamaica
- 4.Barbados
- 33.Japan
- 5.Brazil
- 34.Kenya
- 6.Bulgaria



35.Latvia  
7.Burkina Faso  
36. Liechtenstein  
8.Chile  
37.Lithuania  
9.China  
38.Luxembourg  
10.Colombia  
39.Mexico  
11.Costa Rica  
40.Monaco  
12.Cyprus  
41.Netherlands  
13.Croatia  
42.New Zealand  
14.Czech Republic  
43.Norway  
15.Democratic Republic of the Congo  
44.Panama  
16.Denmark  
45.Paraguay  
17.Ecuador  
46.Peru  
18.Egypt  
47.RepublicofKorea  
19.El Salvador  
48.RepublicofMaoldova  
20.Estonia  
49.Romania  
21.Fiji  
50.Russian Federation  
22.Finland  
51.Slovakia  
23.France  
52.Slovenia  
24.Germany  
53.Spain  
25.Greece  
54.Sweden  
26.Guatemala  
55.Switzerland  
27. Holy See  
56. TheFormer Yugoslav Republic of Macedonia  
28.Honduras  
57.Trinidad and Tobago  
29.Hungary  
58.Ukraine  
59.United Kingdom  
60.United States of America  
61.Uruguay  
62.Venezuela

PART-VI

The World Trade Organisation Countries

[See Paragraph 2(1)]

1.Albania

71.KyrgyzRepublic

2.Angola

72. Latavia

3.Antigua and Barbuda

73.Lesotho

4.Argentina

74.Liechtenstein

5.Australia

75.Luxembourg

6.Austria

76.Macau,China

7.Bahrain

77.Madagascar

8.Bangladesh

78.Malawi

9.Barbados

79.Malaysia

10.Belgium

80.Maldives

11.Belize

81.Mali

12.Benin

82.Malta

13.Bolivia

83.Mauritania

14.Botswana

84.Mauritius

15:Brazil

85.Mexico

16.BruneiOarussalam

86.Mongolia

17.Bulgaria

87.Morocco

18. Burkina Paso

88.Mozambique

19.Burundi

89.Myanmar

20.Cameroon

90.Namibia

21.Canada

91.Netherlands-for the Kingdom in Europe and for theNetherlands Antilles

22.Central African Republic

92.New Zealand

23.Chad

93.Nicaragua

24.Chile

94.Niger

25.Colombia  
95.Nigeria  
26.Congo  
96.Norway  
27.Costa Rica  
97.Pakistan  
28.Coted'Ivoire  
98.Panama  
29.Cuba  
99.Papua New Guinea  
30.Cyprus  
100.Paraguay  
31.Czech Republic  
101.Peru  
32.Democratic Republic of the Congo  
102.Philippines  
33.Denmark  
103.Poland  
34.Djibouti  
104.Portugal  
35.Dominica  
105.Qatar  
36.Dominican Republic  
106.Romania  
37.Ecuador  
107.Rwanda  
38.Egypt  
108. Saint Kitts & Nevis  
39.El Salvador  
109.Saint Lucia  
40.Estonia  
110.Saint Vincent and the Grenadines  
41. European Community  
111.Senegal  
42.Fiji  
112.Sierra Leone  
43.Finland  
113.Singapore  
44.France  
114.Slovak Republic  
45.Gabon  
115.Slovenia  
46.Gambia  
116.Solomon Islands  
47.Georgia  
117.South Africa  
48.Germany  
118.Spain  
49.Ghana  
119.Sri Lanka  
50.Greece

120.Suriname  
51.Grenada  
121.Swaziland  
52.Guatemala  
122.Sweden  
53.Guinea  
123.Switzerland  
54.Guinea-Bissau  
124.Tanzania  
55.Guyana  
125.Thailand  
56.Haiti  
126.Togo  
57.Honduras  
127.Trinidad and Tobago  
58.Hong Kong,China  
128.Tunisia  
59.Hungary  
129.Turkey  
60.Iceland  
130.Uganda  
61.Indonesia  
131.United Arab Emirates  
62.Ireland  
132.United Kingdom  
63.Israel  
133.United States of America  
64.Italy  
134.Uruguay  
65.Jamaica  
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